Amendment of section 47.

21. In section 47 of the Income-tax Act,—

(*a*) in clause (*viiad*), in the *Explanation*,—

(*i*) for clause (*a*), the following clause shall be substituted, namely:—

'(*a*) "original fund" means—

(*A*) a fund established or incorporated or registered outside India, which collects funds from its members for investing it for their benefit and fulfils the following conditions, namely:—

(*i*) the fund is not a person resident in India;

(*ii*) the fund is a resident of a country or a specified territory with which an agreement referred to in sub-section (1) of section 90 or sub-section (1) of section 90A has been entered into; or is established or incorporated or registered in a country or a specified territory as may be notified by the Central Government in this behalf;

(*iii*) the fund and its activities are subject to applicable investor protection regulations in the country or specified territory where it is established or incorporated or is a resident; and

(*iv*) fulfils such other conditions as may be prescribed;

(*B*) an investment vehicle, in which Abu Dhabi Investment Authority is the direct or indirect sole shareholder or unit holder or beneficiary or interest holder and such investment vehicle is wholly owned and controlled, directly or indirectly, by the Abu Dhabi Investment Authority or the Government of Abu Dhabi; or

(*C*) a fund notified by the Central Government in the Official Gazette in this behalf subject to such conditions as may be specified;'

(*ii*) in clause (*b*), for the figures "2023", the figures "2025" shall be substituted;

(*iii*) in clause (*c*), in sub-clause (*i*), after the words and figures "Securities and Exchange Board of India Act, 1992 (15 of 1992) or", the words, brackets and figures "regulated under the International Financial Services Centres Authority (Fund Management) Regulations, 2022, made under the" shall be inserted;

(*b*) after clause (*viic*), the following clause shall be inserted with effect from the 1st day of April, 2024, namely:—

'(*viid*) any transfer of a capital asset, being conversion of gold into Electronic Gold Receipt issued by a Vault Manager, or conversion of Electronic Gold Receipt into gold.

Explanation.—For the purposes of this clause, the expressions "Electronic Gold Receipt" and "Vault Manager" shall have the meanings respectively assigned to them in clauses (*h*) and (*l*) of sub-regulation (1) of regulation 2 of the Securities and Exchange Board of India (Vault Managers) Regulations, 2021 made under the Securities and Exchange Board of India Act, 1992 (15 of 1992).'.

(*c*) after clause (*xix*), the following clause shall be inserted, namely:—

'(*xx*) any transfer of a capital asset, being an interest in a joint venture, held by a public sector company, in exchange of shares of a company incorporated outside India by the Government of a foreign State, in accordance with the laws of that foreign State.

Explanation.—For the purposes of this clause, "joint venture" shall mean a business entity, as may be notified by the Central Government in the Official Gazette.'